



**PARLIAMENT OF THE DEMOCRATIC
SOCIALIST REPUBLIC OF
SRI LANKA**

**CONVENTION AGAINST DOPING IN SPORT
(AMENDMENT) ACT, No. 21 OF 2025**

[Certified on 07th of October, 2025]

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Convention against Doping in Sport (Amendment)
Act, No. 21 of 2025

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L.D. - O. 9/2025

AN ACT TO AMEND THE CONVENTION AGAINST
DOPING IN SPORT ACT, NO. 33 OF 2013

BE it enacted by the Parliament of the Democratic Socialist Republic of Sri Lanka as follows: -

- | | |
|--|--|
| <p>1. This Act may be cited as the Convention against Doping in Sport (Amendment) Act, No. 21 of 2025.</p> | <p>Short title</p> |
| <p>2. Section 2 of the Convention against Doping in Sport Act, No. 33 of 2013 (in this Act referred to as the “principal enactment”) is hereby amended in paragraph (e) of that section, by the substitution for the words “Sri Lanka or abroad.”, of the words “Sri Lanka.”.</p> | <p>Amendment of section 2 of Act, No. 33 of 2013</p> |
| <p>3. Part I of the principal enactment is hereby repealed.</p> | <p>Repeal of Part I of the principal enactment</p> |
| <p>4. Section 5 of the principal enactment is hereby amended as follows: -</p> <p style="margin-left: 40px;">(1) by the repeal of subsection (1) of that section and the substitution therefor, of the following subsection: -</p> <p style="margin-left: 80px;">“(1) A Therapeutic Use Exemption (in this Act referred to as a “TUE”) may be granted to an athlete with a medical condition, permitting the use of a prohibited substance or prohibited method by the athlete when participating at any sports event, only if the conditions set forth in the rules are satisfied.”; and</p> | <p>Amendment of section 5 of the principal enactment</p> |

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- (2) in subsection (2) of that section, by the substitution for the words “an application not less than thirty days”, of the words “an application as soon as possible, and for substances prohibited in-competition only, not less than thirty days” and for the word “should”, of the word “shall”.

Amendment
of section 6 of
the principal
enactment

5. Section 6 of the principal enactment is hereby amended by the repeal of subsections (2), (3), (4) and (5) of that section and the substitution therefor, of the following subsections:-

“(2) (a) The TUE Committee shall consist of not less than three members who shall be persons having experience in clinical, sports and exercise medicine. One of the said members shall be a representative of the Consultant in Sports Medicine of the Ministry of the Minister assigned the subject of Health.

(b) The members shall, at the point of being appointed, disclose any conflict of interest which may exist. The Sri Lanka Anti-Doping Agency established under section 10, shall thereupon take steps to appoint another person in place of such member.

(3) Upon receipt of an application for review under subsection (1), the TUE Committee shall consider such application along with the evidence and documents in support of the TUE and make a decision either granting or refusing the grant of the TUE requested by the athlete.

(4) In arriving at its decision, the TUE Committee shall follow the provisions in the International Standard for Therapeutic Use Exemptions as provided in the rules.

(5) The TUE Committee shall communicate its decision to the Sri Lanka Anti-Doping Agency assigning reasons for such decision.”.

6. Section 7 of the principal enactment is hereby repealed and the following section is substituted therefor: -

Replacement
of section 7 of
the principal
enactment

“TUE to set
out relevant
conditions.

7. (1) The Sri Lanka Anti-Doping Agency shall forthwith communicate the decision of the TUE Committee to the athlete.

(2) The TUE shall set out clearly the prohibited substance or prohibited method in respect of which the TUE is granted and the period for which such exemption is so granted, along with any other conditions.

(3) Any person aggrieved by the decision of the TUE Committee under section 6 may prefer an appeal to the Appeal Panel appointed under section 26.”.

7. Section 8 of the principal enactment is hereby repealed and the following section is substituted therefor: -

Replacement
of section 8 of
the principal
enactment

“Validity of a
TUE.

8. A TUE granted in accordance with the provisions of this Part shall not be applicable, where -

(a) the athlete does not comply with the requirements or conditions subject to which the TUE has been granted;

(b) the period for which the TUE was granted has expired; or

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- (c) the decision of the TUE Committee is reversed as per the rules.”.

Amendment of section 12 of the principal enactment

8. Section 12 of the principal enactment is hereby amended by the repeal of paragraph (b) of that section and the substitution therefor, of the following paragraph: -

“(b) to take measures against anti-doping rule violations;”.

Insertion of a new heading in the principal enactment

9. The following new heading is hereby inserted immediately above section 13 of the principal enactment: -

“PART IIIA

CONSTITUTION OF THE BOARD OF GOVERNORS”.

Amendment of section 13 of the principal enactment

10. Section 13 of the principal enactment is hereby amended as follows:-

- (1) by the repeal of subsection (1) of that section and the substitution therefor, of the following subsection: -

“(1) The oversight of the affairs of the Agency shall be vested in a Board of Governors (in this Act referred to as the “Board”).”;

- (2) in subsection (2) of that section, by the substitution for the word “administering”, of the word “overseeing”; and

- (3) by the repeal of the marginal note to that section and the substitution therefor, of the following marginal note: -

“Oversight of the Agency
to be vested in the Board.”.

11. Section 14 of the principal enactment is hereby amended by the repeal of subsections (1) and (2) of that section and the substitution therefor, of the following subsections: -

Amendment of
section 14 of the
principal
enactment

“(1) The Board shall consist of the following: -

(a) *ex-officio* members, namely-

- (i) an officer not below the rank of Senior Assistant Secretary of the Ministry of the Minister assigned the subject of Sports, nominated by the Secretary of such Ministry;
- (ii) the Director-General of Health Services or his nominee;
- (iii) the Director-General of the National Institute of Sports Medicine;
- (iv) an officer not below the rank of Deputy Solicitor General of the Attorney-General’s Department, nominated by the Attorney-General; and
- (v) an officer not below the rank of Senior Assistant Secretary of the Ministry of the Minister assigned the subject of Finance, nominated by the Secretary of such Ministry; and

(b) two members distinguished in the field of law, medicine or sports science having a minimum of fifteen years of experience, appointed by the Minister (in this Act referred to as the “appointed members”).

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(2) The Minister shall appoint one of the appointed members as the Chairman of the Board on the recommendation of the majority decision of the *ex-officio* members of the Board. The Chairman so appointed shall hold office for a term of three years and shall be eligible for reappointment.”.

Repeal of section
15 of the principal
enactment

12. Section 15 of the principal enactment is hereby repealed.

Repeal of section
16 of the principal
enactment

13. Section 16 of the principal enactment is hereby repealed.

Amendment of
section 17 of the
principal
enactment

14. Section 17 of the principal enactment is hereby amended in subsection (2) of that section, by the substitution for the words “The Minister may if he considers it expedient to do so, remove,”, of the words “If the majority of the members of the Board considers it expedient to do so, the Board may remove,”.

Amendment of
section 18 of the
principal
enactment

15. Section 18 of the principal enactment is hereby amended as follows:-

- (1) in subsection (4) of that section, by the substitution for the word “four”, of the word “three”;
- (2) in subsection (5) of that section, by the substitution for the words “with the approval of the Minister,”, of the words “with the approval of the majority of the members of the Board,”; and

- (3) by the repeal of subsection (6) of that section and the substitution therefor, of the following subsection: -

“(6) Subject to the provisions of this Act, rules may be made, regulating the procedure to be followed with regard to the conduct of the meetings of the Board and transaction of business at such meetings.”.

16. Section 19 of the principal enactment is hereby repealed.

Repeal of section 19 of the principal enactment

17. Section 20 of the principal enactment is hereby repealed.

Repeal of section 20 of the principal enactment

18. Section 22 of the principal enactment is hereby amended as follows:-

Amendment of section 22 of the principal enactment

- (1) in subsection (1) of that section, by the substitution for the words “in the field of medicine or sports medicine”, of the words “in the field of medicine, law, sports administration or sports science”; and
- (2) by the repeal of subsection (2) of that section and the substitution therefor, of the following subsection: -

“(2) The Director-General shall exercise, perform and discharge such powers, duties and functions as may be assigned to the Director-General under the provisions of

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this Act and in accordance with the rules and regulations made thereunder.”.

Insertion of a new heading in the principal enactment

19. The following new heading is hereby inserted immediately above section 23 of the principal enactment: -

“PART III_B

**ESTABLISHMENT OF COMMITTEES AND PANELS TO CONDUCT
 HEARINGS OF ANTI-DOPING RULE VIOLATIONS”.**

Amendment of section 23 of the principal enactment

20. Section 23 of the principal enactment is hereby amended as follows:-

(1) in subsection (1) of that section-

- (a) in paragraph (e) of that subsection, by the substitution for the words “Where a member of Committee or Panel”, of the words and figures “Where a member of a Committee or Panel other than the Anti-Doping Appeal Panel appointed under section 26,”;
- (b) in paragraph (i) of that subsection, by the substitution for the words “The Athlete or a member of his entourage, Agency, the International Federation, the National Sports Association and WADA”, of the words “The athlete or athlete support personnel, the Agency, the International Federation, the National Association of Sports and the World Anti-Doping Agency (WADA)”;
- (c) in paragraph (j) of that subsection, by the substitution for the words “The Athlete or a

member of his entourage”, of the words “The athlete or athlete support personnel” and for the words “The Athlete or related person”, of the words “The athlete or athlete support personnel”;

- (d) in paragraph (m) of that subsection, by the substitution for the words “the Athlete or Person concerned.”, of the words “the athlete or athlete support personnel.”; and
 - (e) in paragraph (n) of that subsection, by the substitution for the words “the Athlete or a member of his entourage, Agency, the International Federation, the National Association of Sports and WADA”, of the words “the athlete or other Person, the Agency, the International Federation, the National Association of Sports and the World Anti-Doping Agency (WADA)”;
- (2) by the repeal of subsection (2) of that section and the substitution therefor, of the following subsection: -

“(2) The Board shall appoint a pool of members, who shall constitute the first instance hearing body to be called the “Sri Lanka Anti-Doping Disciplinary Panel” (in this Act referred to as the “Disciplinary Panel”). Such pool shall consist of-

- (a) two persons from among lawyers who have more than five years’ experience in court appearances;

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- (b) three persons from among medical practitioners who have more than five years' experience in the field of sports medicine; and
 - (c) three persons who shall have previous experience in sports administration.”; and
- (3) by the addition immediately after subsection (2) of that section, of the following new subsections which shall have effect as subsections (3), (4) and (5) of that section: -

“(3) The Minister shall appoint one of the members specified in subsection (2) as the Chairman of the Disciplinary Panel.

(4) The Chairman shall appoint the other members of a Disciplinary Panel which shall not exceed three members including the Chairman.

(5) The Board may pay the Chairman and the other members of the Disciplinary Panel such remuneration or allowance as may be decided by the Board with the concurrence of the Minister assigned the subject of Finance.”.

Replacement
of PART IV of
the principal
enactment

21. PART IV of the principal enactment is hereby repealed and the following PART is substituted therefor: -

“PART IV

DISCIPLINARY PROCEDURE AND APPEALS
PROCEDURE IN RELATION TO ANTI-DOPING
RULE VIOLATIONS

Situation of an anti-doping rule violation.

24. On fulfilling the pre-adjudication procedures established under the rules, the Agency, on being satisfied based on evidential information, may assert that an athlete or other Person has committed an anti-doping rule violation set out in the rules.

Steps to be taken if the Agency asserts an anti-doping rule violation.

25. (1) The Agency shall notify in writing any assertion made under section 24 to the relevant athlete or other Person. The Agency shall also inform the respective foreign national anti-doping body when applicable, the International Federation, the National Association of Sports and the World Anti-Doping Agency (WADA).

(2) Where the Agency makes such an assertion and the athlete or other Person does not waive the right to a hearing within the time provided to do so under the rules, the Agency shall notify the Disciplinary Panel appointed under section 23 and request that a hearing be conducted in accordance with the guidelines specified under the rules.

(3) The Agency shall forward to the Disciplinary Panel all documentation relevant to the anti-doping rule violation available to them.

(4) The Disciplinary Panel shall, after considering all documents and evidence, make a decision and communicate such decision to the Agency and to the athlete or athlete support personnel.

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(5) The athlete or other Person who is alleged to have committed the anti-doping rule violation asserted under subsection (1), may appeal to the Appeal Panel appointed under section 26.

Appointment
of an Appeal
Panel.

26. (1) The Minister shall appoint a pool of six members who have distinguished themselves in the field of law or medicine, to constitute the Anti-Doping Appeal Panel (in this Act referred to as the “Appeal Panel”). The Appeal Panel shall have the possibility, where necessary, to co-opt as a member to the panel any person who possesses the required knowledge and expertise in the relevant field related to a particular matter.

(2) The Appeal Panel shall hear and determine any appeal made to it in accordance with the rules.

Appeals from
the decision of
the TUE
Committee.

26A. An appeal to the Appeal Panel from a decision of the TUE Committee shall be made within such period and in such manner as provided for by rules.

Appeals from
the decision
of the
Disciplinary
Panel
involving a
National
Level Athlete
or Non
International
Event.

26B. (1) Where a decision of the Disciplinary Panel under section 25 does not involve an International Level Athlete or International Event, the parties specified by the rules shall have a right to appeal against such decision to the Appeal Panel.

(2) Where no other party has appealed against a decision of the Disciplinary Panel under subsection (1), the World Anti-Doping

Agency (WADA) may appeal directly to the Court of Arbitration for Sport without preferring an appeal to the Appeal Panel in respect of such decision.

(3) (a) An appeal to the Appeal Panel under subsection (1) shall be made in accordance with the rules.

(b) An appeal to the Appeal Panel by the World Anti-Doping Agency (WADA) shall be made within the time period specified by the rules.

Appeals from the decision of the Disciplinary Panel involving an International Level Athlete or International Event.

26c. Where a decision of the Disciplinary Panel under section 25 involves an International Level Athlete or International Event, the parties specified by the rules shall have a right to appeal against such decision directly to the Court of Arbitration for Sport.

Appeals from the decision of the Appeal Panel.

26d. (1) The decisions of the Appeal Panel shall only be appealed to the Court of Arbitration for Sport in relation to the circumstances and by the parties permitted by the World Anti-Doping Code and International Standard for Results Management, as provided in the rules made under section 33.

(2) It shall be the duty of the Agency to provide the relevant information to any party referred to in subsection (1) if the Court of Arbitration for Sport so directs.

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Consequences
of an adverse
decision by the
Appeal Panel.

27. Where any athlete has been found to have acted in contravention of the rules, such athlete may be punished in terms of the applicable provisions of the rules.”.

Amendment of
section 28 of the
principal
enactment

22. Section 28 of the principal enactment is hereby amended in paragraph (c) of subsection (2) of that section, by the substitution for the words “whether in or outside Sri Lanka.” of the following: -

“whether in or outside Sri Lanka:

Provided however, the Agency shall obtain prior written approval of the Department of External Resources in respect of all foreign donations, gifts or grants.”.

Insertion of
new sections
31A and 31B in
the principal
enactment

23. The following new sections are hereby inserted immediately after section 31 of the principal enactment and shall have effect as sections 31A and 31B of that enactment: -

“Agency
deemed to be
a Scheduled
Institution
within the
meaning of
the Anti-
Corruption
Act.

31A. The Agency shall be deemed to be a Scheduled Institution, within the meaning of the Anti-Corruption Act, No. 9 of 2023, and the provisions of that Act shall be construed accordingly.

Members,
officers and
other
employees of
the Agency
deemed to
be public
servants.

31B. All members, officers and other employees of the Agency shall be deemed to be public servants within the meaning, and for the purposes, of the Penal Code (Chapter 19).”.

24. Section 33 of the principal enactment is hereby amended by the repeal of subsection (1) of that section and the substitution therefor, of the following subsection: -

Amendment of section 33 of the principal enactment

“(1) The Agency shall make rules to implement the applicable provisions of the World Anti-Doping Code within its powers, duties and functions.”.

25. Section 34 of the principal enactment is hereby amended in subsection (3) of that section, by the substitution for the words “not later than sixty days”, of the words “not later than ninety days”.

Amendment of section 34 of the principal enactment

26. Section 36 of the principal enactment is hereby amended as follows: -

Amendment of section 36 of the principal enactment

- (1) by the insertion immediately after the definition of the expression “athlete”, of the following new definition: -

““athlete support personnel” means any coach, trainer, manager, agent, team staff, official, medical or paramedical personnel, parent or any other person working with, treating or assisting an athlete participating in or preparing for sports competition;”;

- (2) by the repeal of the definition of the expression “CAS”;
- (3) by the repeal of the definition of the expression “Code”;
- (4) by the insertion immediately after the definition of the expression “competition”, of the following new definition:-

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““Court of Arbitration for Sport” means the Court of Arbitration for Sport established by the International Olympic Committee;”;

- (5) by the repeal of the definition of the expression “in-competition testing” and the substitution therefor, of the following definitions: -

““in-competition” means the period commencing at 11:59 p.m. on the day before a competition in which the athlete is scheduled to participate through the end of such competition and the sample collection process related to such competition;

“information” includes data, text, images, sounds, codes, databases or microfilm;

“International Level Athlete” means an athlete who competes in sport at the international level, as defined by each International Federation consistent with the International Standard for Testing and Investigations;

“Person” means a natural person or an organization or other entity;”;

- (6) by the repeal of the definition of the expression “sports organization”;
- (7) by the repeal of the definitions of the expressions “Therapeutic Use Exemption (TUE)” and “use” and the substitution therefor, of the following definitions, respectively: -

““Therapeutic Use Exemption (TUE)”, in relation to PART II of this Act, means an exemption granted to an athlete with a medical condition, in accordance with the World Anti-Doping Code and the International Standard for Therapeutic Use Exemptions as set out in the rules made under section 33;

“use” means the utilization, application, ingestion, injection or consumption by any means whatsoever of any prohibited substance or prohibited method;” and

- (8) by the addition immediately after the definition of the expression “World Anti-Doping Agency (WADA)”, of the following new definition: -

““World Anti-Doping Code” means the World Anti-Doping Code adopted by the World Anti-Doping Agency (WADA) on March 5, 2003, at Copenhagen, as amended from time to time.”.

27. Notwithstanding the provisions of this Act, all suits, prosecutions, actions, proceedings, matters or things which have been instituted in, and are pending before the High Court of Sri Lanka holden in Colombo or the High Court of the Province established under Article 154P of the Constitution for the Western Province holden in Colombo on the day immediately preceding the date of commencement of this Act shall be heard under the provisions of the Act under which such was instituted and be concluded by such Court.

Transitional
Provisions

Sinhala text to
prevail in case of
inconsistency

28. In the event of any inconsistency between the Sinhala and Tamil texts of this Act, the Sinhala text shall prevail.

